

Court No. - 9

Case :- WRIT - C No. - 64452 of 2009

Petitioner :- M/S. Hans Costing Private Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd.

Petitioner Counsel :- H.N. Singh, B. Narayan Singh

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Vijay Manohar Sahai, J.

Hon'ble Yogesh Chandra Gupta, J.

We have heard learned counsel for the parties. The respondents are granted one month to file counter affidavit. The petitioner shall have three weeks thereafter to file rejoinder affidavit.

List after expiry of the aforesaid period.

Learned counsel for the petitioner has urged that the petitioner had applied for termination of agreement with respondents no.1 and 2. As per clause 04.14 (g) read with clause 4.38 of the U.P. Electricity Supply Code, 2005, it is clear that where a consumer gives notice for termination of agreement, after expiry of 30 days the agreement between the parties shall come to an end. Therefore, prima facie the respondents cannot demand any minimum guarantee charges from the petitioner. In this view of the matter, the petitioner is entitled to interim order.

Until further orders of this court, effect and operation of order dated 20.7.2009 passed by respondent no.2, Annexure-2 to the writ petition, shall remain stayed.

Order Date :- 1.12.2009

PK

Court No. - 36

Case :- WRIT - C No. - 64452 of 2009

Petitioner :- M/S. Hans Costing Private Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd.

Petitioner Counsel :- H.N. Singh, B. Narayan Singh

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Prakash Krishna, J.

Hon'ble Yogesh Chandra Gupta, J.

As prayed, three weeks' and no more time is granted to file counter affidavit.

List thereafter.

Order Date :- 8.1.2010

IB

Court No. - 36

Case :- WRIT - C No. - 64452 of 2009

Petitioner :- M/S. Hans Costing Private Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd.

Petitioner Counsel :- H.N. Singh, B. Narayan Singh

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Prakash Krishna, J.

Hon'ble Yogesh Chandra Gupta, J.

Two weeks' further time is granted to file counter affidavit.

Order Date :- 1.2.2010

ALS

Court No. - 3

Case :- WRIT - C No. - 64452 of 2009

Petitioner :- M/S. Hans Costing Private Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd.

Counsel for Petitioner :-

Counsel for Respondent :- C.S.C.

Hon'ble Pritinker Diwaker,J.

Hon'ble Saral Srivastava,J.

None for the petitioner even when the case is called in revised list.

Mr. Ghanshyam Dwivedi, learned counsel for the State.

The writ petition is dismissed for want of prosecution.

Interim order, if any, stands vacated.

Order Date :- 20.11.2018

Ajeet

Court No. - 34

Case :- WRIT - C No. - 64452 of 2009

Petitioner :- M/S. Hans Costing Private Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd.

Counsel for Petitioner :- H.N. Singh, B. Narayan Singh

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Jayant Banerji, J.

Due to paucity of time, the matter could not be taken up.

Put up on **27.11.2020** in the additional cause list.

Order Date :- 18.11.2020

Harshita

Court No. - 34

Case :- WRIT - C No. - 64452 of 2009

Petitioner :- M/S. Hans Costing Private Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd.

Counsel for Petitioner :- H.N. Singh, B. Narayan Singh

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Jayant Banerji, J.

Due to paucity of time, the matter could not be taken up.

Put up this matter on 5.1.2021 in the additional cause list.

Order Date :- 1.12.2020

Brijesh

Court No. - 29

Case :- WRIT - C No. - 64452 of 2009

Petitioner :- M/S. Hans Costing Private Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd.

Counsel for Petitioner :- H.N. Singh, B. Narayan Singh

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Pankaj Naqvi, J.

Hon'ble Piyush Agrawal, J.

As prayed, list on **25.1.2021** in the additional cause list.

Order Date :- 5.1.2021

N.S.Rathour

Court No. - 29

Case :- WRIT - C No. - 64452 of 2009

Petitioner :- M/S. Hans Costing Private Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd.

Counsel for Petitioner :- H.N. Singh, B. Narayan Singh

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Pankaj Naqvi, J.

Hon'ble Piyush Agrawal, J.

Rejoinder affidavit on behalf of the petitioner is reported to be filed in the Registry on 19.3.2019. Office is directed to trace out and place on record.

List again peremptorily in the additional cause list on 18.2.2021.

Order Date :- 25.1.2021

samz

Court No. - 29

Case :- WRIT - C No. - 64452 of 2009

Petitioner :- M/S. Hans Costing Private Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd.

Counsel for Petitioner :- H.N. Singh, B. Narayan Singh

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Pankaj Naqvi, J.

Hon'ble Piyush Agrawal, J.

As prayed, list in the additional cause list on 16.3.2021.

Order Date :- 18.2.2021

samz

Court No. - 29

Case :- WRIT - C No. - 64452 of 2009

Petitioner :- M/S. Hans Costing Private Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd.

Counsel for Petitioner :- H.N. Singh, B. Narayan Singh

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Pankaj Naqvi, J.

Hon'ble Piyush Agrawal, J.

Learned counsel for the petitioner states that Sri Krishna Agarwal is appearing for the respondent concerned but his name has not been shown in the cause list. Office shall ensure that when the case is listed next the name of Sri Krishna Agarwal be also shown as counsel for the respondent.

List in the additional cause list on 24.3.2021 showing the name of Sri Krishna Agarwal, as counsel for the respondent.

Order Date :- 16.3.2021

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